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State Of Rajasthan v. Babu Meena .

Supreme Court Of India (Feb 13, 2013)

CASE NO.

Criminal Appeal No. 570 of 2007, decided on February 13, 2013

DISPOSITION

DISMISSED

JUDGES

- Justice A.K. Patnaik
- Justice C.K. Prasad

ATTORNEY

- Ajay Veer Singh Jain, R.K Verma, Nitin Jain, U.R Bokadia and Milind Kumar, Advocates, for the Appellant;
- Jitendra Kumar, Advocate, for the Respondent.

SUMMARY**Factual and Procedural Background**

On 20-4-2005 Prem Singh (PW 4) lodged a First Information Report alleging that his 16-year-old daughter, Kirti Chauhan, had left home and was missing. He suspected the involvement of his elder daughter Jitendra and Jitendra's husband, the respondent-accused Babu Meena. The police registered a case under Sections 363 and 366 of the Penal Code, 1860. During investigation, Kirti stated that after being enticed to Udaipur she was sexually assaulted by the accused.

A charge-sheet was filed and the accused was committed to the Court of Session on charges under Sections 363, 366, 376 and 323 IPC. After examining 12 witnesses, the trial court found that Kirti was over 18, had left home voluntarily, and that her testimony regarding *rape* was inconsistent and unsupported by medical, forensic, or independent witness evidence. The court therefore acquitted the accused of all charges.

The State of Rajasthan sought leave to appeal against the acquittal. The High Court of

Rajasthan refused, holding that the trial court had properly appreciated the evidence. The State then approached the Supreme Court, which granted leave to appeal.

Legal Issues Presented

1. Whether the Supreme Court should interfere with the High Court's refusal to grant leave to appeal against the trial court's acquittal.
2. Whether a conviction for *rape* can be based solely on the testimony of the prosecutrix when that testimony is alleged to be inconsistent and unsupported by corroborative evidence.

Arguments of the Parties

Appellant (State of Rajasthan)

- The trial court erred in rejecting the testimony of the prosecutrix; her evidence alone was sufficient for conviction if found trustworthy.
- Reliance was placed on the Supreme Court decision in *Vijay @ Chinee v. State of Madhya Pradesh* (2010) 8 SCC 191, which states that a conviction may rest solely on credible testimony of the prosecutrix without need for corroboration.

Respondent-Accused

No counsel appeared and no arguments were advanced on behalf of the respondent.

Table of Precedents Cited

Precedent	Rule or Principle Cited For	Application by the Court
<i>Vijay @ Chinee v. State of Madhya Pradesh</i> , (2010) 8 SCC 191	The sole credible testimony of a prosecutrix can sustain a conviction without corroboration.	The Supreme Court accepted the principle but held it inapplicable because the prosecutrix's testimony was found "wholly unreliable."

Court's Reasoning and Analysis

The Court reiterated that a conviction can rest on the sole testimony of a prosecutrix if that testimony is wholly reliable. It then undertook a credibility assessment of Kirti's evidence:

- **Material contradictions:** She claimed in court that the *rape* occurred at 12:00 noon, whereas her investigative statement placed the time at 6:30 a.m; she offered no explanation when confronted.
- **Lack of corroboration:** Her assertion that she cried for help was not supported by the house owner (PW 11).

- **Medical and forensic evidence:** Dr. Smt. Sushila (PW 12) and the forensic science laboratory report offered no support for *rape* .

Given these deficiencies, the Court held the testimony “wholly unreliable.” Once that conclusion was reached, the only reasonable view was the one already adopted by the trial court. Consequently, the High Court’s refusal to grant leave was justified, leaving no ground for Supreme Court intervention.

Holding and Implications

APPEAL DISMISSED; the acquittal of the respondent-accused stands confirmed.

Implications: The decision maintains the respondent’s acquittal and affirms that appellate courts should not interfere with acquittals where the prosecution evidence is found wholly unreliable. The judgment applies settled law and does not create a new precedent.

JUDGMENT

The Judgment of the Court was delivered by

Chandramauli Kr. Prasad, J.— The State of Rajasthan, aggrieved by the order of the High Court refusing Criminal Leave to Appeal No. 241 of 2006 to grant leave against the judgment of acquittal, is before us with the leave of the Court.

2. Prosecution started on the basis of a first information report lodged by PW 4, Prem Singh, inter alia alleging that on 20-4-2005 his daughter, Kirti Chauhan, aged about 16 years left the house and her whereabouts are not known. The informant suspected that his elder daughter, Jitendra had allured her. He further disclosed that Jitendra had solemnised inter-caste marriage with Babu Meena, the accused herein and was staying in Udaipur, Rajasthan. Accordingly, the informant prayed that search be made to recover his daughter.

3. On the basis of the aforesaid information, a case under **Sections 363 and 366 of the Penal Code, 1860** was registered. During the course of investigation, the statements of informant Prem Singh, his wife, Pushpa (PW 5) and their daughter Kirti Chauhan (PW 3) were recorded. During the course of investigation, it surfaced that Kirti Chauhan received a telephone call from her sister Jitendra and her husband, the accused herein, who enquired about her marriage. Kirti replied that her marriage was going to be held soon on which her sister counselled her that the boy with whom her marriage is going to be solemnised is a vagabond and asked her not to marry him. They also told her that the accused will go to her and she should come along with him. Kirti, as requested by her sister, came along with the accused and, according to her, she was treated well for a couple of days. She further stated, during the course of investigation, that the accused subjected her to sexual intercourse against her consent.

4. The police, after usual investigation, submitted a charge-sheet and the accused was ultimately committed to the Court of Session to face the trial. Charges under **Sections 363, 366, 376 and 323 of the Penal Code** were framed against the accused. The accused denied

the charges and claimed to be tried. To bring home the charges the prosecution has examined altogether 12 witnesses besides a large number of documents were also exhibited.

5. The trial court, on appreciation of evidence, came to the conclusion that Kirti was more than 18 years of age and she had left the house voluntarily. The only witness to support the allegation of *rape* is the victim herself. Kirti (PW 3) had stated in her evidence that the accused committed *rape* at 12.00 noon but, in her statement recorded during the course of investigation, her allegation was that she was raped by the accused at 6.30 a.m To establish that the *rape* was committed without her consent she has deposed that while she was subjected to *rape* she shouted, but nobody came to her rescue. However, Ramchandra Salvi (PW 11), the owner of the house in which the alleged *rape* took place has not supported the victim. Dr Smt Sushila (PW 12), who examined the victim had also not supported the allegation of *rape* . Further, the report of the forensic science laboratory also does not support the allegation of *rape* . Taking into account the aforesaid infirmities in the case of the prosecution, the trial court held that the prosecution has not been able to prove its case beyond reasonable doubt and accordingly, gave the accused the benefit of doubt and acquitted him of all the charges.

6. Aggrieved by the aforesaid decision, the State of Rajasthan preferred an appeal and sought leave of the High Court for filing such an appeal. The High Court declined to grant the leave inter alia observing that the order of acquittal has been rendered on proper appreciation of evidence available on record.

7. Mr Ajay Veer Singh Jain appears on behalf of the appellant. Despite service, nobody has chosen to appear on behalf of the respondent-accused.

8. Mr Jain assails the acquittal of the respondent under **Section 376 of the Penal Code** and contends that the trial court ought to have accepted the evidence of Kirti (PW 3). He submits that conviction can be based on the sole testimony of the prosecutrix and the trial court erred in rejecting her evidence and acquitting the respondent. In support of the submission he has placed reliance on the judgment of this Court in *Vijay v. State of M.P* ([2010\) 8 SCC 191](#) Relevant para of the judgment reads as under:

“14. Thus, the law that emerges on the issue is to the effect that the statement of the prosecutrix, if found to be worthy of credence and reliable, requires no corroboration. The court may convict the accused on the sole testimony of the prosecutrix.”

9. We do not have the slightest hesitation in accepting the broad submission of Mr Jain that the conviction can be based on the sole testimony of the prosecutrix, if found to be worthy of credence and reliable and for that no corroboration is required. It has often been said that oral testimony can be classified into three categories, namely, (i) wholly reliable, (ii) wholly unreliable, and (iii) neither wholly reliable nor wholly unreliable. In case of wholly reliable testimony of a single witness, the conviction can be founded without corroboration. This principle applies with greater vigour in case the nature of offence is such that it is committed in seclusion. In case prosecution is based on wholly unreliable

testimony of a single witness, the court has no option than to acquit the accused.

10. In the background of the aforesaid legal position, when we consider the case in hand we are of the opinion that the statement of the prosecutrix is not at all reliable or in other words wholly unreliable. No other evidence has been led to support the allegation of *rape*. Hence, it shall be unsafe to base the conviction on her sole testimony. In her evidence she had stated that she was subjected to *rape* at 12.00 noon when her sister Jitendra, the wife of the accused had gone to purchase milk. However, during the course of investigation she alleged that she was subjected to *rape* at 6.30 a.m. When confronted with the aforesaid contradiction in the cross-examination, she could not explain the aforesaid discrepancy. Her statement that she shouted for help when she was subjected to *rape* also does not find support from the evidence of Ramchandra Salvi (PW 11), the owner of the house where the incident is alleged to have taken place. Dr Smt Sushila (PW 12), has also not supported the allegation of *rape* as also the forensic science laboratory report. In the face of what we have observed above, the evidence of the prosecutrix cannot be said to be wholly reliable.

11. In the light of the aforesaid evidence the view taken by the trial court was the only possible view. Once it is held so, the order of acquittal is not fit to be interfered with and the High Court rightly declined to grant leave against the judgment of acquittal.

12. In view of what we have observed above, we do not find any merit in the appeal and it is dismissed accordingly.